

Statutory flexible working requests

1 . What flexible working is

Flexible working involves making a change to when, where or how an employee works.

Some form of flexibility can be built into almost all jobs, regardless of the organisation's size or sector.

When considering flexible working, it's best to start by thinking about what might be possible.

Types of flexible working

There are many different types of flexible working.

For example:

- part-time hours
- staggered hours
- remote working
- working from home
- hybrid working
- flexitime
- job sharing
- compressed hours

While some might not be practical for every job, it's likely other types will work.

[Find out more about different types of flexible working](#)

Benefits of flexible working

Flexible working can benefit both employees and employers.

For employees, it can help:

- balance work with other parts of their life
- improve health and wellbeing
- open up more jobs to them

For employers, it can help:

- attract and keep staff
- their employees be more productive
- keep employees happy and motivated
- recruit for jobs that are hard to fill
- improve diversity and inclusivity

As an employer, it's good practice to have a policy on flexible working. A policy can help managers and employees discuss and agree flexible working in a consistent way. [Read more about having a flexible working policy.](#)

How to agree flexible working

Employees and employers can agree any flexible working arrangement that meets both their needs.

[Find out more about options for agreeing changes](#)

2. Options for agreeing changes

Employees have a statutory (legal) right to request a change to when, where or how they work. If they make a statutory flexible working request, their employer must follow the statutory procedure.

Employees and employers can also discuss and agree changes without using the statutory procedure. Sometimes a quick chat might be all that's needed to agree a change.

The statutory right to request flexible working

Employees have a statutory right to request flexible working. This applies from the first day of the job.

Employers can accept, partially accept or reject a request. The employer can only reject the request if there's a genuine business reason.

If an employee makes a statutory flexible working request, the employer must:

- handle it in a reasonable way, in line with the [Acas Code of Practice on requests for flexible working](#)
- accept the request unless there's a genuine business reason not to
- consult the employee and discuss any alternative options – unless they've agreed to the request in full

- make a decision within a maximum of 2 months
- not dismiss or cause the employee detriment because of their request

Find out more about:

- [the statutory right to request flexible working](#)
- [making a statutory request](#)

Agreeing a change without using the statutory procedure

Employees and employers can agree flexible working arrangements informally without using the statutory procedure.

For example, if someone:

- prefers to informally ask for a change
- does not have a statutory right to request flexible working – this could be because they're [legally classed as a worker](#) or have not started their job yet
- has already made 2 statutory requests that year
- needs to ask for a short-term or urgent change

As an employee, you might be able to agree a change by talking to your manager. It can be quicker and easier to agree a change this way.

If you informally ask for flexible working, you and your employer do not need to follow the statutory procedure.

While there's no legal obligation to follow the Acas Code for informal requests, following a similar procedure can help:

- deal with requests fairly and reasonably
- avoid delays
- handle requests consistently
- keep good working relationships

If a change is agreed

If an employer and employee agree a flexible working change, this usually changes the terms of the employment contract.

For example, if the change relates to the employee's:

- working hours
- job location
- job description

- pay

If any contract terms change, the employer must put them in writing within one month of agreeing them.

Find out more about:

- [changing written terms](#)
- [changing an employment contract](#)

Asking for a change related to a disability

A disabled employee might need to ask for adjustments to where, when or how they work because of their disability.

In this situation they could make either:

- a reasonable adjustment request, under the Equality Act 2010
- a statutory flexible working request, under the Employment Rights Act 1996

As an employee, you should carefully consider each option to decide what's best for your circumstances.

Making a reasonable adjustment request

A reasonable adjustment is a change that removes or reduces a disadvantage related to someone's disability. By law (Equality Act 2010), employers have a legal duty to make reasonable adjustments for disabled employees.

Find out more about:

- [how to request a reasonable adjustment](#)
- [the law on reasonable adjustments](#)
- [what disability means](#)

Making a statutory flexible working request

The legal duty to make reasonable adjustments is separate to the legal duty to consider a flexible working request.

If an employee makes a flexible working request related to their disability, the employer must follow both:

- the statutory procedure for flexible working requests
- the law on reasonable adjustments when making a decision

The employer does not need to follow the law on reasonable adjustments if the flexible working request does not relate to the employee's disability. For example, if they request to reduce their hours to study part time.

This can be a complicated area and it's important for employers to understand their legal responsibilities. If an employer does not follow the law, an employee could make a claim to an employment tribunal.

Get more advice and support

Employees and employers can get more advice or support:

- [contact the Acas helpline](#) to talk through your options
- [find support for managing disability at work](#)

Before a job starts

The statutory right to request flexible working does not apply until the first day of a job.

However, employers should think about flexible working options for a job before an employee starts. This can help prepare for any requests.

It's good practice for employers to:

- think about how the job might be done flexibly before advertising
- advertise any specific flexible working options that are available
- say in job adverts that they're open to discussing other flexible working options
- discuss flexible working before the applicant starts the job
- be open to what might be possible

This can help:

- start conversations about flexible working
- agree flexible working arrangements as early as possible
- start a good working relationship
- avoid the applicant turning down the job

If you've been offered a job and would like to agree a flexible working arrangement, you can:

- discuss it with the employer – you can do this before or after you start
- make a statutory flexible working request once you start the job

3. The right to request

By law (Employment Rights Act 1996), employees have a statutory (legal) right to request flexible working.

Who the right applies to

The statutory right to request flexible working applies to anyone [legally classed as an employee](#).

The right applies from the first day of employment.

Parents and carers

If an employee has children or caring responsibilities, they must follow the same request procedure as other employees.

Employers should handle all requests in the same way, including when someone:

- has children
- cares for someone
- is returning from maternity, paternity or adoption leave

What an employer must do

If an employer receives a statutory flexible working request, they must:

- accept the request unless there's a genuine business reason not to
- consult the employee before making a decision – unless they accept it in full
- handle the request reasonably, in line with the Acas Code of Practice on requests for flexible working
- make a final decision, including any appeal, within a maximum of 2 months

The importance of following the Acas Code

If an employee makes a statutory request, the employer and employee must follow [the Acas Code of Practice on requests for flexible working](#).

If a case reaches an employment tribunal, the judge will consider whether the employer and employee have followed the Acas Code.

Requests made before 6 April 2024

The law on statutory requests for flexible working changed on 6 April 2024.

Previously, employees:

- needed to work for their employer for at least 26 weeks to make a statutory request
- were limited to one request in any 12-month period
- had to include in their request any effects the change could have on their work or the organisation, and how they or their employer might deal with them

If an employee made a statutory request before 6 April 2024, the previous law applies. This means the employer:

- must accept the request unless there's a genuine business reason not to

- must handle the request reasonably, in line with the previous Acas Code of Practice on handling flexible working requests
- must give a final decision, including any appeal, within a maximum of 3 months
- should invite the employee to a meeting to discuss the request before making a decision

Any requests made before 6 April 2024 will count towards the current limit for [making statutory requests](#).

For requests made before 6 April 2024, use [the previous Acas Code of Practice on handling flexible working requests on the UK Government Web Archive](#).

Protection from dismissal and detriment

By law, employees are protected from [unfair dismissal](#) and 'detriment' for statutory flexible working requests.

This protection applies when:

- making a statutory flexible working request
- planning to make a request
- raising an issue with their employer related to their request
- making a legal claim related to their request

Detriment means someone experiences one or both of the following:

- being treated worse than before
- having their situation made worse

Examples of detriment could be:

- they experience [bullying](#)
- they experience [harassment](#)
- their employer turns down their training requests without good reason
- they are overlooked for promotions or development opportunities
- their employer reduces their hours without good reason

Requests that do not use the statutory procedure

Employees and employers can agree flexible working arrangements without using the statutory procedure.

In this situation:

- they do not need to follow the statutory procedure and Acas Code
- there's no statutory protection from unfair dismissal and detriment under the law on flexible working requests

[Read more about options for agreeing changes](#)

4. Making a request

As an employee making a statutory request, you must put your request in writing.

Before making a request, you should check:

- who to send your request to

- the limits for making a request, if you've made any previous requests

If you'd like a change to start in a specific week or month, it's a good idea to request it ahead of time. This is so your employer has enough time to consider it. Your employer must make a decision, including any appeal, within a maximum of 2 months.

Putting the request in writing

As an employee making a flexible working request, you must:

- put the request in writing to your employer – either in a letter or email
- say it's a 'statutory request' for flexible working

Your request must also include:

- the date of your request
- the change you're requesting – for example the change in your hours or place of work
- when you'd like the change to start
- if you have made any previous statutory flexible working requests to your employer
- the date of any previous requests

[Use our flexible working request letter template](#)

Sending the request

As an employee, before making a request, check if your organisation's flexible working policy says:

- who to send your request to
- there's a specific form or document you need to use

If there's no policy, send your request to your employer or manager – either by email or letter.

Limits for making a request

As an employee, there are limits on the number of statutory requests you can make.

You can:

- make a maximum of 2 requests during any 12-month period
- only have one 'live' request with the same employer at a time

A request will stay live until any of the following happen:

- your employer makes a decision
- you withdraw your request
- you and your employer agree an outcome
- it's been 2 months since the date of your request

A request will stay live during:

- any appeal
- any extension to the 2-month decision period, if you and your employer agreed to extend it

Extending the time limit

You and your employer can extend the 2-month time limit if you both agree to it.

If you agree to an extension, your employer should confirm the extension in writing. For example, in a letter or email.

5. Considering a request

As an employer, if you receive a statutory flexible working request, you must:

- accept the request unless there's a genuine business reason not to
- consult the employee before making a decision – unless you accept it in full
- make a final decision, including any appeal, within 2 months
- handle the request fairly and reasonably, in line with the [Acas Code of Practice on requests for flexible working](#)

When considering a request, it can help to start by thinking about what might be possible. Some types of flexible working might not be practical for every job. But it's likely some types of flexible working will work.

Following the law when handling a request

As an employer, you must follow:

- a statutory request procedure, in line with the Acas Code of Practice on requests for flexible working
- discrimination law
- the law on reasonable adjustments, if the request relates to someone's disability

You must handle every request in a 'reasonable manner'. What is reasonable depends on each situation, but you should:

- handle all requests in line with your organisation's policies and the Acas Code of Practice
- consider requests in order of the date you received them
- base your decision on facts, without making assumptions
- make sure managers understand the procedure for handling flexible working requests
- make a decision in a reasonable timeframe
- communicate your decision clearly, including the reasons behind it
- offer the employee the opportunity to appeal the decision

Discrimination

Under discrimination law (Equality Act 2010), you must not disadvantage someone because of any of the following 'protected characteristics':

- age
- disability
- gender reassignment
- marriage and civil partnership
- pregnancy and maternity
- race
- religion or belief
- sex
- sexual orientation

This applies to flexible working requests, including:

- the way you handle the request
- the decision you make
- how you handle any information an employee shares

Example of discrimination

Alex is a man working in a team of 20 people. A few women in the team have had flexible working requests agreed. They have later start times to care for their children. Alex makes a flexible working request to have a later start time. This is to help balance work and school drop-off times. The employer refuses Alex's request because they think childcare is less important to men. If there's no genuine business reason to refuse Alex's request, this is likely to be direct discrimination because of sex.

[Find out more about discrimination](#)

Reasonable adjustments

A reasonable adjustment is a change that removes or reduces a disadvantage related to someone's disability. By law (Equality Act 2010), you have a legal duty to make reasonable adjustments for disabled employees.

The legal duty to make reasonable adjustments is separate to the legal duty to consider a flexible working request.

If a disabled employee makes a flexible working request related to their disability, you must follow both:

- the statutory procedure for flexible working requests
- the law on reasonable adjustments when making a decision

You do not need to follow the law on reasonable adjustments if the employee's flexible working request does not relate to their disability. For example, if they request to reduce their hours to study part time.

This can be a complicated area and it's important to understand your legal responsibilities. If you do not follow the law, an employee could make a claim to an employment tribunal.

If you need more advice or support:

- [read more about the law on reasonable adjustments](#)
- [contact the Acas helpline](#)
- [find support for managing disability at work](#)

Acknowledging the request

As an employer, it's a good idea to confirm you've received the request.

This can help make clear to the employee:

- you've received their request and are considering it
- what the next steps are
- you'll be in touch

[Use our flexible working acknowledgement letter template](#)

Considering the request

As an employer, you should consider each request carefully before making a decision.

You should consider:

- how the change would affect the employee
- how the change would affect the business
- any potential benefits or challenges
- how rejecting the request would affect both the business and the employee

By law, you must accept a request unless there's a genuine business reason not to.

If you get more than one request

If you get multiple requests, you should handle them fairly by:

- considering each request in the order you receive it
- following the same procedure for each request
- looking at what's possible, rather than matching previous decisions
- not prioritising requests based on people's personal situations – unless someone is requesting a reasonable adjustment related to their disability

Sometimes you might get multiple requests for a similar change. In this situation you might not be able to accept everyone's request. If so, you should talk to each employee about alternative options and try to find a compromise.

You might not be able to agree an alternative that works for everyone. In this case you should consider each request separately, in the order you received them.

Example 1 – considering requests in order

An employee requests to change their start and finish times to finish work at 3pm each day. A few days later another employee requests to change their finish time to 3pm to care for their children. If the business cannot accommodate both requests, you should talk to each employee to try and find a compromise. If you cannot agree a compromise, you should consider the requests in the order you received them. You should not prioritise the second request based on the employee's personal circumstances.

Example 2 – considering requests in order

Two employees make flexible working requests to have Fridays off. Your business can only accommodate one employee being off on Fridays. You should talk to each employee separately to discuss alternative options and try to find a compromise. If you cannot agree a compromise, you should consider each request in the order you received them.

Reasons for rejecting a request

By law, as an employer, you can only reject a request if it's for one or more of the following business reasons:

- it will cost your business too much
- you cannot reorganise the work among other staff
- you cannot recruit more staff
- there will be a negative effect on quality of work
- there will be a negative effect on the business's ability to meet customer demand
- there will be a negative effect on performance
- there's not enough work for your employee to do when they've requested to work

- there are planned changes to the business, for example, you intend to reorganise or change the business and think the request will not fit with these plans

If you feel that one of these reasons apply, you must consult the employee before [making a decision](#).

Talking and listening to the employee before making a decision can help:

- check you understand the request
- check if the request relates to a disability – if so, you must also follow the law on [reasonable adjustments](#)
- discuss any potential issues with the change
- listen to the employee's thoughts, concerns and ideas
- discuss other options, if there's a genuine business reason to reject the original request

If there's no business reason to reject the request, you must agree to it.

6. Making a decision

As an employer, you must agree to an employee's flexible working request unless there's a genuine business reason not to.

Unless you agree to the request in full, you have a legal obligation to consult the employee before making a decision.

Consulting means talking and listening to the employee about their request, to make a fully-informed decision. You should think carefully about the request, and what else might be possible. For example, accepting part of the request or offering an alternative option.

If you agree to the request

If you agree to the employee's request in full, there's no legal requirement to consult.

You can communicate your decision and discuss the next steps with the employee. [Read more about communicating the decision](#).

In all other cases you must consult the employee before making a decision.

When to consult

Unless you agree to the employee's request in full, you must consult the employee before making a decision.

There's no specific timeframe for consulting, but you should have a meeting with the employee as soon as you can. You must make a final decision about the request, including any appeal, within 2 months.

Arranging a meeting

You should arrange a meeting to consult the employee. You should do this in advance so that you and the employee have time to prepare.

The person who holds the meeting should have the authority to make a decision about the employee's request.

So that the employee can prepare for the meeting and knows what to expect, you should:

- give the employee reasonable notice
- confirm the meeting time and place
- say which specific issues you want to discuss – for example, the specific business reason you might not be able to accept their request and any alternative options
- explain what will happen after the meeting
- tell them they can ask to bring a companion

You should hold the meeting in person or over a video call. If that's not possible, you can have the meeting on a phone call.

Bringing a companion

There's no legal right to be accompanied to a flexible working request meeting. However, as an employer, you should allow this if an employee makes a reasonable request.

What makes a request reasonable will depend on the circumstances. However, in general employees should:

- make the request clear
- tell you who they'd like to bring
- give you enough time to make arrangements

The employee does not have to put their request in writing, but it can be useful to do so.

If the request is reasonable you should allow them to bring another employee or a trade union representative.

In some circumstances, you might have a legal obligation to allow a companion. Under discrimination law employers must make [reasonable adjustments](#) for disabled employees. This might mean allowing a support worker or someone with knowledge of the disability to attend.

The companion's role is to support the employee. They can take notes for the employee, but should not represent the employee or speak on their behalf.

Having the meeting

When you have the meeting, you should:

- talk to and listen to the employee about the flexible working change they've requested
- consider the request fairly

This is an opportunity to discuss and better understand:

- the reason for the request

- how it might affect the employee and the organisation
- any benefits to the change
- any business reasons for potentially rejecting the request
- any alternative options, if there's a genuine business reason to reject the request
- if the request relates to a disability and might be a reasonable adjustment

Discussing these things can help you consider the employee's thoughts, concerns and ideas to make a fully-informed decision.

If you cannot accept the request in full

If there's a genuine business reason for rejecting the original request, you should discuss alternative options with the employee.

Both you and the employee should consider and discuss:

- whether you could accept part of the request
- ideas for alternative options
- how to get some of the benefits of the original request in another way
- whether a trial period could help test out a change

If the employee does not attend

If the employee cannot or does not attend a flexible working meeting, the employer should contact them and rearrange the meeting.

In some circumstances, the employee might not attend the rearranged meeting. If the employee does not have a good reason for this, the employer can consider that the employee has withdrawn their request.

If the employer considers the request has been withdrawn, they must tell the employee. It's good practice to put this in writing. For example, in an email or letter.

Keeping a record of the meeting

As an employer, you should keep a written record of the meeting. It should accurately reflect what you discussed.

It's good practice to share this with the employee to avoid any misunderstandings about what you discussed and agreed.

If you share a record of the meeting, you should remove any sensitive information to follow data protection law (UK GDPR).

At the end of the meeting

In some cases, you might be able to make a decision in the meeting.

In other cases, you might need more time to make a decision. For example, if you need to get more information, consider ideas raised by the employee or look into alternative options. In this case you should let the employee know the next steps and when you expect to make a decision.

Once you've made your decision, you should [confirm your decision in writing](#).

7. Communicating the decision

As an employer, once you've made a decision about the request you must tell the employee.

You should put your decision in writing.

[Use our template to communicate your decision](#)

If you agree to a change

If you agree to the employee's request in full, or agree a different change with them, you should put in writing:

- the details of the flexible working arrangement you've agreed
- an invitation to discuss next steps

If you have not agreed to the request in full, you should let the employee know how they can appeal the decision. This should include any timeframe for appealing.

You should put these things in a letter or email.

Discussing next steps

You should invite the employee to discuss next steps so that you can:

- talk about how the arrangement will work in practice
- go through any details

For example, this might include discussing:

- when the new arrangement will start
- any changes to pay and leave entitlement, for example if they're changing to part time
- any changes to ways of working and keeping in touch
- how to adjust the employee's workload and hand over work, for example if reducing hours or changing shifts
- dates to review the arrangement and how it's working
- when contract changes will be confirmed in writing
- how they'll continue to access training and development opportunities
- how they can get support if needed

You should keep a written record of the discussion. It should accurately reflect what you talked about. It's good practice to share this with the employee to avoid any misunderstandings about what you discussed and agreed.

You can implement the change without this discussion if both you and the employee agree it's not needed.

Putting contract changes in writing

If you agree a flexible working change, this usually changes the terms of the employment contract.

For example, if the change relates to the employee's:

- working hours
- job location
- job description
- pay

If any contract terms change, you must put the changes in writing within one month of agreeing them.

Find out more about:

- [changing written terms](#)
- [changing an employment contract](#)

Changing the arrangement in future

Flexible working arrangements can be changed in future, as long as both the employer and employee agree to it.

If the employee wants to change the arrangement, they can either:

- make another statutory flexible working request
- ask for a reasonable adjustment, if it relates to a disability
- informally ask for a change

If the employer wants to make a change, they will need to agree the change with the employee. [Find out more about steps to change an employee's contract.](#)

If you reject the request

If you've consulted the employee and decided to reject their request, you should put in writing:

- the business reason or reasons for rejecting their request
- as much relevant information as you reasonably can to explain your decision
- how the employee can appeal the decision, including any timeframe for appealing

[The Acas Code of Practice on requests for flexible working](#) says you should include 'any additional information which is reasonable' to help explain your decision. This could include:

- the steps you took to investigate whether you could accept the request
- any practical aspects of the job that prevented you accepting the request
- any alternative options you considered
- any data you used to help make your decision – for example staffing levels or recruitment costs
- any health and safety considerations related to the request

If the employee disagrees

If the employee disagrees with the decision, you should give them the option to appeal as part of a reasonable procedure.

If the employee appeals the decision, you should handle the appeal fairly and impartially.

[Read more about handling a flexible working request appeal](#)

8. Appeals

There's no legal right to appeal a statutory flexible working request decision. However, employers should give employees the option to appeal as part of a reasonable procedure.

An appeal is an opportunity:

- for an employee to raise any concerns or share any new information
- for an employer to review and change their decision if necessary
- to find an outcome that suits both the employee and employer

If an employee appeals, the employer must make their final decision within 2 months of the date of the original request. This time limit can be extended if the employee and employer agree to extend it. The employer should confirm any extension in writing, for example in a letter or email.

How to appeal

As an employee, you should follow your organisation's flexible working policy if it says how to appeal. If not, you should raise your appeal in writing to your employer.

Depending on the reason for your appeal, write in a letter or email:

- why you think the decision was not right – for example, if you felt the person making the decision missed some important information
- why you think the procedure was not reasonable – for example, if you felt your employer did not consult you before refusing your request
- what you would like to happen next – for example, you could ask your employer to review their decision, taking into account new information you've shared

You should send your appeal as soon as possible. Your employer must make a decision on your appeal within 2 months of your original request. This is unless you've agreed to extend this.

Handling an appeal

As an employer, you should appoint someone to handle the appeal who has the authority to make a final decision.

The person who handles the appeal should be a manager who was not previously involved in considering the request. If this is not possible, you should try and make the procedure as impartial as you can.

The manager handling the appeal should:

- understand the procedure for handling flexible working requests
- follow the organisation's policies
- get enough information to make an impartial decision
- keep an open mind
- be aware of unconscious bias

Keep in mind you have 2 months from the date of the original request to make a final decision. This is unless you've agreed with the employee to extend this.

Arranging an appeal meeting

As an employer or manager handling the appeal, you should arrange an appeal meeting. You should:

- give the employee advance notice, so they have time to prepare
- confirm the meeting time and place
- hold the meeting in person or over a video call – or on a phone call if that's not possible
- tell the employee they can ask to bring a companion

Bringing a companion

There's no legal right to be accompanied to a flexible working request meeting. However, as an employer, you should allow this if an employee makes a reasonable request.

What makes a request reasonable will depend on the circumstances. However, in general employees should:

- make the request clear
- tell you who they'd like to bring
- give you enough time to make arrangements

The employee does not have to put their request in writing, but it can be useful to do so.

If the request is reasonable you should allow them to bring another employee or a trade union representative.

In some circumstances, you might have a legal obligation to allow a companion. Under discrimination law employers must make [reasonable adjustments](#) for disabled employees. This might mean allowing a support worker or someone with knowledge of the disability to attend.

The companion's role is to support the employee. They can take notes for the employee, but should not represent the employee or speak on their behalf.

Having the appeal meeting

The appeal meeting gives the employee the chance to:

- state their case
- ask the employer to look at a different outcome

As an employee, during the appeal meeting it can help to:

- explain why you think the decision is not right
- say where you feel the procedure was not reasonable
- ask questions about the parts of the procedure you felt were not reasonable
- present new information, if you have it
- listen to your employer's point of view
- refer to your organisation's policy or the Acas Code of Practice on requests for flexible working

As the manager holding the meeting, you should:

- introduce everyone, explaining why they are there if necessary
- explain the purpose of the meeting, how it will be conducted and who has the authority to decide the outcome
- ask the employee why they are appealing
- look at new information, if there is any
- summarise the points after discussing them, and end the meeting

After the meeting, the manager handling the appeal will need to consider if:

- they agree with the original decision or not
- they need to change the original decision

If the employee does not attend

If the employee cannot or does not attend an appeal meeting, the employer should contact them and rearrange the meeting.

In some circumstances, the employee might not attend the rearranged meeting. If the employee does not have a good reason for this, the employer can consider that the employee has withdrawn their request.

If the employer considers the request has been withdrawn, they must tell the employee. It's good practice to put this in writing. For example, in an email or letter.

Communicating the appeal outcome

As the manager handling the appeal, you should let the employee know your decision as soon as possible.

You should tell the employee in writing:

- if the original decision was right
- if the original procedure was reasonable
- if you've decided to change the original decision
- the reason for your decision

If you disagree with an appeal outcome

As an employee, if you feel the appeal outcome was wrong it can help to consider:

- the reasons your employer gave for not accepting your request
- any alternative options you and your employer discussed
- whether your employer followed a reasonable procedure in line with the Acas Code of Practice

It might also help to talk to your employer to ask:

- if there are any planned changes to the business that might allow the change in the future
- if a different flexible working arrangement might be possible, either now or in the future

Depending on what you find out, you might decide to:

- [make another request](#) now or in the future – you can make up to 2 statutory requests within any 12-month period
- take no further action
- raise the issue with your employer, if you feel you need to take it further

If you need to raise an issue you could:

- check your organisation's flexible working policy for any next steps
- find out [how to raise a problem at work](#)
- [contact the Acas helpline](#) to talk through your options

Making a legal claim

As an employee, you might be able to make a claim to an employment tribunal if you feel your employer:

- did not handle your request in line with the [Acas Code of Practice on requests for flexible working](#)
- rejected your request without a genuine business reason, as set out in the Acas Code
- dismissed you or caused you detriment because of your flexible working request
- handled your request in a way that discriminated against you

If you intend to make a claim, you must notify Acas first.

In limited circumstances, you might be able to use [Acas arbitration](#) instead of going to an employment tribunal. You can talk to your Acas conciliator about this option after you notify us.

Find out more about:

- making a claim to an [employment tribunal](#)
- protection from dismissal and detriment related to [the statutory right to request flexible working](#)